

		<u>Paragraph 82.</u> The FAC fails to allege sufficient facts in support of punitive damages under the sixth cause of action for failure to provide reasonable accommodation, under which paragraph 82 appears. (See Civ. Code, § 3294, subds. (a)-(c); <i>Neisendorf v. Levi Strauss & Co.</i> (2006) 143 Cal.App.4th 509, 517 [“While an employer’s duties under the FEHA include extending reasonable accommodations to an employee if reasonable accommodations will enable the employee to perform his or her essential duties (Gov. Code, § 12940, subds.(a)(1), (2)), there is no similar provision in the CFRA requiring an employer to provide reasonable accommodation to an employee returning from CFRA leave.”]; see also FAC ¶¶ 17-18, 76-77 [defendants provided plaintiff with disability leave for the entire duration of her alleged disabilities].) The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.
55.	ACI Jet Orange County, LLC v. Daichendt 2024- 01379682	Defendant Joseph Daichendt’s Motion to Disqualify Gerald Klein as counsel for any party or witness in this matter is DENIED. As a non-client, Daichendt must establish he has standing to seek disqualification of Klein from representing any other party or witness in these proceedings. “California ... permits a nonclient to move for disqualification of opposing counsel under certain circumstances ... where the ethical breach is manifest and glaring and so infects the litigation in which disqualification is sought that it impacts the moving party’s interest in a just and lawful determination of [his or] her claims, a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.” (<i>Conservatorship of Lee C.</i> (2017) 18 Cal.App.5th 1072, 1083 [internal citations and quotation marks removed] [citing <i>Kennedy v. Eldridge</i> (2011) 201 Cal.App.4th 1197, 1204].) Daichendt attempts to establish standing to seek disqualification of Mr. Klein by arguing that Klein has suborned perjury. “The elements of subornation of perjury are: (1) a corrupt agreement to testify falsely; (2) proof that perjury has in fact been committed; (3) the statements of the witness who committed perjury are material; and (4) such statements were willfully made with knowledge as to the falsity of the statements.” (<i>People v. Lucero</i> (2019) 41 Cal.App.5th 370, 406.) Daichendt reasons that Klein has suborned perjury because his client, William Borgsmiller, in a deposition taken in the

related proceeding, submitted an errata sheet on the advice and under the supervision of Mr. Klein that materially altered deposition testimony that Daichendt believes is important to his case. Namely, the deposition testimony at issue is as follows:

WITNESS: There were multiple reasons we set it up that way.

Q: Tell me all of them.

WITNESS: One, was to structure it correctly around the law relating to the air carrier....

In Borgsmiller's deposition errata, the answer is changed to state "structure it correctly under the law" and notes that this is a change made to correct a transcription error.

Daichendt argues that this is false, as Borgsmiller clearly said "around" and not "under" at the deposition. Daichendt reasons that since Klein was aware this change was false, he suborned perjury.

This argument fails.

As an initial matter, Code Civ. Proc. §2025.520, subd. (b) permits a deponent to "change the form or the substance of the answer to a question..." Even if Borgsmiller uttered the word "around" at his deposition, he was within his right to change his testimony to "under." Thus there is no ground for this claim of subornation of perjury and no basis to disqualify Mr. Klein from representing any party or witness in this action when the witness did what the law permits.

Furthermore, even if this change could possibly constitute perjury, Daichendt has made no evidentiary showing of Klein's involvement. Speculation is not evidence.

The court rules as follows on the evidentiary objections.

Objections to the Declaration of Zfaty. Sustained in part as to No. 1 ("on the advice and under the supervision of his counsel, Gerald Klein") otherwise overruled. Sustained as to Nos. 2-3, 5, 7-8. All other objections are overruled.

Objections to the Declaration of Klein. Sustained in part as to No. 4 ("For whatever reason, . . . to disqualify me.") otherwise overruled. Sustained as to Nos. 9-22. All other objections are overruled.

The court did not consider the evidence in reply.

		The case management conference is set for August 3, 2026 at 9:00 a.m. in Department C28. Plaintiff shall provide notice of this ruling.
56.	Nguyen v. Lucatero 2025-01450476	Defendant Vietnamese Buddhist Congregation Association's motion for summary judgment is GRANTED. Defendant has met its initial burden to show plaintiff Mai T. Nguyen's claims are without merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [same]; Civ. Code §3342 [strict liability only applies to owner]; <i>Wise v. Superior Court</i> (1990) 222 Cal.App.3d 1008, 1013 [elements of negligence]; <i>Yuzon v. Collins</i> (2004) 116 Cal.App.4th 149, 152 [landlord duty of care requires actual knowledge of dangerous propensities of dog]; SSUMF Nos 1-7; 11-13; 15.) Since the motion is unopposed, plaintiff has failed to meet her shifted burden to show any material triable issue. The court orders judgment in favor of Defendant Vietnamese Buddhist Congregation Association. Upon review of the docket, the court notes that there is a hearing on June 22, 2026 to address motions to be relieved as counsel for plaintiff. It appears to the court that attorney Hoan N. Nguyen's motion is moot, given the substitution of attorney form filed by Hoan N. Nguyen. (ROA 64). The court notes that, while filed on April 1, 2026, the form is signed as of October 30, 2025 and substituted Bobbi Bolton of Pacific Coast Injury Law Center as plaintiff's new counsel. As it relates to the motion to be relieved filed by Richard Kwak of Pacific Coast injury Law Center (ROA 57), it is unclear to the court whether Bobbi Bolton, Esq. (also of Pacific Coast injury Law Center) intends to continue representing plaintiff or whether Pacific Coast Injury Law Center seeks to be relieved as counsel—including relieving Bobbi Bolton. Given these uncertainties, plaintiff's counsel shall be prepared to discuss their intention concerning the motion to withdraw. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.